

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Frank Montgoris	Team: Squad #13	CCRB Case #: 201709313	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 11/08/2017 11:10 PM	Location of Incident: Schley Avenue, between Brush Avenue and Hutchinson River Parkway	18 Mo. SOL 5/8/2019	Precinct: 45		
Date/Time CV Reported Thu, 11/09/2017 9:07 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 11/09/2017 9:07 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Darren Sukennikoff	14881	961337	045 PCT
2. POM Stephen Santoro	16281	958055	045 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Darren Sukennikoff	Abuse: Police Officer Darren Sukennikoff stopped § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . POM Stephen Santoro	Abuse: Police Officer Stephen Santoro stopped § 87(2)(b) and § 87(2)(b)	B . Exonerated
C . POM Darren Sukennikoff	Abuse: Police Officer Darren Sukennikoff frisked § 87(2)(b)	C . Substantiated
D . POM Darren Sukennikoff	Abuse: Police Officer Darren Sukennikoff frisked § 87(2)(b)	D . Substantiated
E . POM Stephen Santoro	Abuse: Police Officer Stephen Santoro frisked § 87(2)(b)	E . Substantiated
F . POM Stephen Santoro	Abuse: Police Officer Stephen Santoro frisked § 87(2)(b)	F . Substantiated
G . POM Darren Sukennikoff	Abuse: Police Officer Darren Sukennikoff searched § 87(2)(b)	G . Substantiated
H . POM Darren Sukennikoff	Abuse: Police Officer Darren Sukennikoff searched § 87(2)(b)	H . Unsubstantiated
I . POM Stephen Santoro	Abuse: Police Officer Stephen Santoro searched § 87(2)(b)	I . Unsubstantiated
J . POM Stephen Santoro	Abuse: Police Officer Stephen Santoro searched § 87(2)(b)	J . Unsubstantiated
K . POM Darren Sukennikoff	Abuse: Police Officer Darren Sukennikoff searched the vehicle in which § 87(2)(b) was an occupant.	K . Exonerated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB on behalf of himself and his three friends, § 87(2)(b) and § 87(2)(b) via the online website on November 9, 2017.

Only § 87(2)(b) the complainant in this case, provided a sworn, in-person statement to the investigation. § 87(2)(b) and § 87(2)(b) each provided phone statements to the investigation, but both individuals voluntarily declined to provide an in-person statement. Also, § 87(2)(b) was uncooperative with the investigation.

On November 8, 2017 at approximately 11:10 p.m., PO Darren Sukennikoff and PO Stephen Santoro, from the 45th Precinct, stopped § 87(2)(b) and § 87(2)(b) outside of Ferry Point Park, in the Bronx (**Allegations A and B: Abuse of Authority, exonerated**). PO Sukennikoff frisked § 87(2)(b) and § 87(2)(b) (**Allegations C and D: Abuse of Authority, substantiated**). PO Santoro frisked § 87(2)(b) and § 87(2)(b) (**Allegations E and F: Abuse of Authority, substantiated**). PO Sukennikoff searched § 87(2)(b) and allegedly searched § 87(2)(b) (**Allegation G: Abuse of Authority, substantiated; Allegation H: Abuse of Authority, unsubstantiated**). PO Santoro searched § 87(2)(b) and allegedly searched § 87(2)(b) (**Allegations I and J: Abuse of Authority, unsubstantiated**). PO Sukennikoff then searched § 87(2)(b)'s vehicle (**Allegation K: Abuse of Authority, exonerated**). Six summonses were issued as a result of this incident: § 87(2)(b) and § 87(2)(b) all received summonses for § 87(2)(b). Also, § 87(2)(b) was issued a summons for § 87(2)(b), and § 87(2)(b) was issued a summons for § 87(2)(b).

Security footage of this incident was obtained from 500 Brush Avenue. While the footage captures the incident in its entirety, the majority of the specific actions taken by both civilians and officers cannot be seen due to the quality of the footage. The video, which was edited via Snag-It, is linked to IA #114 (Board Review 01).

Allegation A – Abuse of Authority: Police Officer Darren Sukennikoff stopped § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

Allegation B – Abuse of Authority: Police Officer Stephen Santoro stopped § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

It is undisputed that § 87(2)(b) and § 87(2)(b) were inside of Ferry Point Park after 10 p.m. It is further undisputed that Ferry Point Park closes at 10 p.m.

The investigation obtained a photo of a sign posted at Ferry Point Park, indicating that the park closes at 10 p.m. (Board Review 02).

Persons may enter and use the parks from 6 a.m. until 1 a.m., unless otherwise posted at any park. NYC Department of Parks and Recreation, Section 1-03(a). No person shall enter or remain in any park without the permission of the Commissioner when the park is closed to the public. Id. An officer may stop an individual when he reasonably suspects that a person has committed, is committing, or is about to commit a crime. People v. DeBour, 40 N.Y.2d 210; 352 N.E. 2d 562 (1976) (Board Reviews 03 and 04).

§ 87(2)(g)

Therefore, it is recommended that **allegations A and B** be closed as **exonerated**.

Allegation C – Abuse of Authority: Police Officer Darren Sukennikoff frisked § 87(2)(b)

Allegation D – Abuse of Authority: Police Officer Darren Sukennikoff frisked § 87(2)(b)

Allegation E – Abuse of Authority: Police Officer Stephen Santoro frisked § 87(2)(b)

Allegation F – Abuse of Authority: Police Officer Stephen Santoro frisked § 87(2)(b)

It is undisputed that the officers frisked § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that, after being ordered out of the park, PO Sukennikoff told the four individuals to place their hands on § 87(2)(b)'s parked vehicle. PO Sukennikoff then patted § 87(2)(b) down from his shoulders to his ankles, including his front pants pockets. § 87(2)(b) denied seeing the frisks of any other individuals (Board Review 05).

§ 87(2)(b) in a brief phone statement, alleged that PO Santoro patted him down from head to toe. § 87(2)(b) also in a brief phone statement, alleged that PO Sukennikoff patted his entire body (Board Reviews 06 and 07).

PO Sukennikoff testified that, when he ordered the four individuals out of the park, multiple individuals placed their hands inside of their pockets – though he could not specify who this was or how many individuals did this. PO Sukennikoff asked these individuals twice to take their hands out of their pockets, and they were briefly compliant by taking their hands out of their pockets, only for them to re-place their hands back inside. PO Sukennikoff patted § 87(2)(b)'s and § 87(2)(b)'s waistband and outer portions of their pockets, while PO Santoro patted down § 87(2)(b) and § 87(2)(b). PO Sukennikoff stated that, aside from multiple individuals having their hands in their pockets, he did not have any other information to believe any of them may have had a weapon, and frisked them because the officers were outnumbered and the individuals were non-compliant in keeping their hands out of their pockets (Board Review 08).

PO Santoro did not recall any additional commands being issued to the four individuals aside from asking them to leave the park. He acknowledged patting § 87(2)(b) and § 87(2)(b) down on their waistband and pocket areas for his safety, doing so because he did not know who they were. PO Santoro denied that there were any specific factors or indications that led him to believe that either of them was armed with a weapon (Board Review 09).

An officer may frisk an individual when he independently reasonably suspects that he is in danger of physical injury by virtue of the detainee being armed. People v. DeBour, 40 N.Y.2d 210; 352 N.E. 2d 562 (1976). A frisk is improper if the officer frisks someone based solely on their movements towards their pockets or waist area. People v. Miller, 121 A.D.2d 335 (1986) (Board Reviews 04 and 10).

§ 87(2)(g)

As a result, it is recommended that **allegations C, D, E, and F** be closed as **substantiated**.

Allegation G – Abuse of Authority: Police Officer Darren Sukennikoff searched § 87(2)(b)

It is undisputed that PO Sukennikoff entered § 87(2)(b)'s right pants pocket and removed his car keys.

§ 87(2)(b) alleged that, aside from his right pants pocket, PO Sukennikoff entered his left pants pocket, which contained his cell phone and wallet (Board Review 05).

PO Sukennikoff testified that, while frisking § 87(2)(b) he felt a bulge in one of his pockets, which felt to him to be metal. He suspected the object, from feeling it, to be a set of keys, so he reached into § 87(2)(b)'s pocket and removed it. PO Sukennikoff explained that he did this because he was unsure whether the keys contained a pocketknife, which PO Sukennikoff said is common. However, he could not estimate how many times he has experienced such a scenario. PO Sukennikoff denied entering any other pockets on § 87(2)(b) (Board Review 08).

PO Santoro denied seeing the interaction between § 87(2)(b) and PO Sukennikoff, stating that he was busy frisking § 87(2)(b) and § 87(2)(b) (Board Review 09).

An officer must have probable cause to believe a person has committed a crime to perform a search of a person. People v. DeBour, 40 N.Y.2d 210; 352 N.E. 2d 562 (1976) (Board Review 04).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **allegation G** be closed as **substantiated**.

Allegation H – Abuse of Authority: Police Officer Darren Sukennikoff searched § 87(2)(b)

Allegation J – Abuse of Authority: Police Officer Stephen Santoro searched § 87(2)(b)

§ 87(2)(b) alleged in his brief, unsworn phone statement, that PO Sukennikoff entered his pockets. Similarly, § 87(2)(b) alleged in his phone statement that PO Santoro entered his pockets (Board Reviews 06 and 07).

§ 87(2)(b) could not specify whether officers entered the pockets of § 87(2)(b) and § 87(2)(b) because he was not focused on them (Board Review 05).

While the security footage captures the incident, specific actions taken by PO Sukennikoff and PO Santoro, including whether they searched § 87(2)(b) and § 87(2)(b) cannot be determined because of the quality of the video (Board Review 01).

Both PO Sukennikoff and PO Santoro denied entering the pockets of § 87(2)(b) and § 87(2)(b) (Board Reviews 08 and 09).

§ 87(2)(g)

Therefore, it is recommended that **allegations H and J** be closed as **unsubstantiated**.

Allegation I – Abuse of Authority: Police Officer Stephen Santoro searched § 87(2)(b)

It is undisputed that § 87(2)(b) had marijuana on his person during the incident, and that PO Santoro performed a search of § 87(2)(b) to obtain it.

§ 87(2)(b) in his in-person statement and follow-up phone call, alleged that PO Sukennikoff asked § 87(2)(b) if he had anything on him, but denied that § 87(2)(b) acknowledged having marijuana on him. § 87(2)(b) did not see the specific actions taken by PO Santoro because he was focused on PO Sukennikoff's search of himself. Both § 87(2)(b) and § 87(2)(b) in their brief phone statements, alleged that § 87(2)(b) was "searched," but did not provide details to this search (Board Reviews 05, 06, 07, and 17).

PO Santoro testified that, prior to frisking § 87(2)(b) and § 87(2)(b) he asked them, "Do you have anything on you that I should be worried about?" § 87(2)(b) did not respond to the question, but § 87(2)(b) replied, "Yes. I have a bag of marijuana in my pocket." After frisking § 87(2)(b) PO Santoro told him to take the bag of marijuana out of his pocket, and § 87(2)(b) complied (Board Review 09).

PO Sukennikoff denied seeing the circumstances of PO Santoro's interaction with § 87(2)(b) stating that he was dealing with § 87(2)(b) and § 87(2)(b) at the time (Board Review 08).

An officer must have probable cause to believe a person has committed a crime to perform a search of a person. People v. DeBour, 40 N.Y.2d 210; 352 N.E. 2d 562 (1976) (Board Review 04).

§ 87(2)(g)

As a result, it is recommended that **allegation I** be closed as **unsubstantiated**.

Allegation J – Abuse of Authority: Police Officer Darren Sukennikoff searched the vehicle in which § 87(2)(b) **was an occupant.**

It is undisputed that there was marijuana in the backseat of § 87(2)(b)'s vehicle, and that PO Sukennikoff searched the vehicle, including the trunk.

§ 87(2)(b) alleged that PO Sukennikoff searched the interior of the vehicle, including the center console, glove compartment, underneath the seats, and the backseat. PO Sukennikoff recovered less than a gram of marijuana in the backseat of the vehicle, though § 87(2)(b) was unsure where exactly in the backseat it was. He noted that he was unaware that the marijuana was there, believing that § 87(2)(b) potentially left it there upon getting to the park. PO Sukennikoff then searched the trunk of the vehicle (Board Review 05).

§ 87(2)(b) alleged in his brief phone statement that multiple officers searched the vehicle. § 87(2)(b) in his brief phone statement, did not see § 87(2)(b)'s vehicle be searched (Board Reviews 06 and 07).

At the 00:15 mark in the security footage, PO Sukennikoff and PO Santoro are seen exiting their police vehicle. The driver of the vehicle approaches § 87(2)(b)'s parked car and utilizes his flashlight and looks through the window of the rear driver's door. Later, at the 8:56 mark and the 10:24 mark, the trunk of the vehicle is seen being opened and closed, though it cannot be determined, due to the quality of the video, who opens or closes the trunk (Board Review 01).

PO Sukennikoff, who testified that he was the driver of the police vehicle, stated that, upon arriving at the location, he approached § 87(2)(b)'s vehicle because he believed someone to be inside due to the foggy windows. Upon looking through the window, he observed a small, plastic Ziploc bag of marijuana in plain view in the backseat, behind the driver's seat. Later, after retrieving the keys from § 87(2)(b) he searched the interior of the vehicle, and then searched the trunk. He recovered the bag of marijuana in the backseat, and an additional two bags of marijuana from the trunk of the vehicle (Board Review 08).

PO Santoro denied seeing PO Sukennikoff search the vehicle, denied knowing whether the vehicle was ever searched, and denied participating in the search (Board Review 09).

The presence of marijuana in plain view in a vehicle gives officers probable cause to believe the vehicle contains narcotics paraphernalia and thereby gives officers the right to search the entire vehicle. People v. Jackson, 40 A.D.3d 280 (1st Dep't 2007) (Board Review 11).

§ 87(2)(g)

Therefore, it is recommended that **allegation J** be closed as **exonerated**.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
- As of February 27, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 15).

Civilian and Subject Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been parties (Board Review 16).
- PO Sukennikoff has been a member-of-service for two years, and this is the first CCRB complaint to which he has been a subject.
- PO Santoro has been a member-of-service for three years, and this is the first CCRB complaint to which he has been a subject.

Squad No.: 13

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date